

24VECV04482 24VECV04482

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-12

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C08%2F12%2F2026

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Case Number: 24VECV04482 Hearing Date: August 12, 2026 Dept: T

24VECV04482 Dubin v BMW

[TENTATIVE] ORDER:

Plaintiff Gary Dubin's Motion for Attorney's Fees, Costs and Expenses is
GRANTED at the reduced amount of \$32,911.94.

Introduction

Plaintiff Gary Dubin

(Plaintiff) moved for their attorneys' fees, costs, and expenses against Defendant BMW of North America, LLC (Defendant). Plaintiff requested a total in fees, costs, and expenses of \$81,981.19, which included attorney fees of \$47,779.50, a 1.5 enhancement of \$23,889.75, and costs and expenses of \$10,311.94. The request for costs was also included in a concurrently filed Memorandum of Costs.

Discussion[1]

Plaintiff asserted

entitlement to attorneys' fees as the prevailing parties under Civil Code, section 1794(d). There is no dispute that Plaintiff is the prevailing party.

Statutory attorney fees

are ordinarily determined by the court pursuant to the "lodestar" or "touchstone" method. However, the Court's discretion is somewhat limited in fee awards under the Song Beverly Consumer Warranty Act. The statute takes a different approach from customary statutory or contractual provisions.

The statute requires an "initial determination of the actual time

expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. Here, the substantive work done on this case were as follows:

Complaint

CMC Statements x 2

Motions in limine (standard and boilerplate)

Ex parte application to continue trial and for inspection

Exhibit List

Witness List

Special Verdict

Jury Instructions

Motion for fees

This is a firm which routinely handles hundreds, if not thousands of case. There was nothing unique about this case.

If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” In the situation of a contingency fee arrangement, the court in *Nightingale* stated, “for purposes of section 1794, subdivision (d), a prevailing buyer represented by counsel is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorney.” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817-818 (citing to *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104-105, fn. 6.) Plaintiff provided that ten attorneys and three paralegal/law clerks worked on the case.

The attorneys' rates ranged from \$375.00/hour to \$625.00/hour. The paralegal/law clerk rates ranged from \$145.00/hour to \$250.00/hour. (Kirnos Decl. par. 28.) Based upon the large amount of education and experience of the attorneys and paralegal/law clerks, the Court finds the hourly rates charged by the attorneys and paralegal/law clerks to be reasonable. Plaintiff was further charged a total of 98.3 hours for attorney and paralegal/law clerk work. (Kirnos Decl. Exh. A.) However, a review of the invoice shows that the time expended is very excessive considering the amount of experience and expertise Plaintiff's counsels and paralegal/law clerks. This action did not require a large amount of law and motion work, other than the motions in limine which ultimately became moot due to the settlement and even then, they are the same ones made by this firm in all of its Lemon Law cases, needing only to be printed out with minor changes.

The time expended for discovery (total of 65.3 hours) is also extremely excessive because discovery in this Lemon Law action was not contentious considering the lack of any discovery law and motion, and the standard discovery is used by this firm with minor changes for the make and model of the car. Because the instant action was not highly contentious, the 98.3 hours expended in this action are excessive.

Considering the above facts, the Court reduces the amount of fees to \$26,600.00.

As to the request for a 1.5 enhancement, it is Plaintiff's burden of proof to show that the enhancement is primarily to compensate counsel at a rate reflecting the risk of nonpayment in contingency cases as a class. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138.) In determining to augment the fees by a multiplier the Court takes into consideration "various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 819; Serrano v. Priest (Serrano III) (1977) 20 Cal.3d 25, 49.) The representation of Plaintiff did not exceed the quality of representation that would have been provided by attorneys of comparable skill and experience

billing at the hourly rates reviewed above.

There was no presentation of any new or novel legal theory to promote Plaintiff's position. It is noted that the litigation with Defendant was not highly contentious. The law and motion disputes were minimal to negligible in amount. The only law and motion work filed were the motions in limine which became moot due to the settlement. Further, the fact that this action took a year and four months to prosecute, defend, and/or settle also shows the non-complex nature of the action. Lastly, the fact that ten attorneys could seamlessly work on the case and take on different sections of prosecuting the action further shows the non-complexity of the case. On these grounds, the Court declines to award a fee enhancement.

The motion for attorneys' fees is GRANTED and the amount is reduced to \$22,600.00.

As for Costs, the Court enters the costs requested in the Memorandum of Costs, as requested, because no dispute over the amount of costs was raised by way of a Motion to Strike or Tax Costs. It is further noted that Defendant's opposition did not dispute the requested costs.

The requested Costs of \$10,311.94 are GRANTED.

The total amount in fees and costs awarded to Plaintiff is \$32,911.94.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.

[1] Defendant's Opposition is a clearly a "cut and paste" job from some other case because Defendant refers to Plaintiff's Counsel as "Romano Stancroff". (See Oppo. pgs. 7-9.) Plaintiff's Counsel is not "Romano Stancroff". Defendant only correctly refers to Plaintiff Counsel's correct name, Kirnos, on page 3 of the Oppo.]